



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35605051

Date: JAN. 25, 2025

Appeal of Nebraska Service Center Decision

Form I-601, Application for Waiver of Grounds of Inadmissibility

The Applicant has applied to adjust status to that of a lawful permanent resident and seeks a waiver of inadmissibility under section 212(i) of the Immigration and Nationality Act (the Act), 8 U.S.C. § 1182(i).

The Director of the Nebraska Service Center denied the application, concluding that the Applicant did not establish extreme hardship to her U.S. citizen spouse, the only qualifying relative. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Applicant bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

Any noncitizen who, by fraud or willfully misrepresenting a material fact, seeks to procure (or has sought to procure or has procured) a visa, other documentation, or admission into the United States or other benefit provided under the Act, is inadmissible. Section 212(a)(6)(C)(i) of the Act, 8 U.S.C. § 1182(a)(6)(C)(i). There is a discretionary waiver of this inadmissibility if refusal of admission would result in extreme hardship to the United States citizen or lawful permanent resident spouse or parent of the noncitizen. Section 212(i) of the Act.

A determination of whether denial of admission will result in extreme hardship depends on the facts and circumstances of each case. *Matter of Cervantes-Gonzalez*, 22 I&N Dec. 560, 565 (BIA 1999) (citations omitted). We recognize that some degree of hardship to qualifying relatives is present in most cases; however, to be considered “extreme,” the hardship must exceed that which is usual or expected. *See Matter of Pilch*, 21 I&N Dec. 627, 630-31 (BIA 1996) (finding that factors such as economic detriment, severing family and community ties, loss of current employment, and cultural readjustment were the “common result of deportation” and did not alone constitute extreme hardship). In determining whether extreme hardship exists, individual hardship factors that may not rise to the

level of extreme must also be considered in the aggregate. *Matter of Ige*, 20 I&N Dec. 880, 882 (BIA 1994) (citations omitted).

II. ANALYSIS

The record establishes that the Applicant is a citizen of Vietnam and that she married her current spouse, a U.S. citizen, in Vietnam in [] 2019. The Applicant was found inadmissible by a consular officer under section 212(a)(6)(C)(i) of the Act. Specifically, government records indicate that the Applicant previously applied for a fiancée visa based on a relationship that was determined not to be bona fide.¹ The Applicant does not contest her inadmissibility on appeal. As a result, she requires a waiver of inadmissibility under section 212(i) of the Act.

In denying the Form I-601, the Director determined that the Applicant was not eligible for a waiver under section 212(i) of the Act because she had not established extreme hardship to her U.S. citizen spouse. The Director acknowledged, among other hardship factors, the documentation regarding the spouse's mental health concerns and medical diagnoses. However, the Director found that the evidence did not sufficiently establish that the spouse would experience extreme hardship if the Applicant's waiver is denied. The Director noted that while the Applicant had submitted prescription records for the spouse's sleeping disorder and cholesterol, there was no further evidence of medical hardship related to these conditions or documentation indicating the Applicant was needed in the United States to care for the spouse. The record before the Director also included a psychological evaluation related to the spouse's symptoms of depression and anxiety, but did not elaborate how these diagnoses affected his daily activities.

On appeal, the Applicant submits a letter and additional psychological reports for the spouse. She contends that she has established eligibility for the waiver based on extreme hardship to her spouse.

As stated, in order to establish eligibility for a waiver under section 212(i) of the Act, the Applicant must demonstrate that refusal of admission would result in extreme hardship to a qualifying relative or relatives, in this case her U.S. citizen spouse. An applicant may show extreme hardship in two scenarios: 1) if the qualifying relative remains in the United States separated from the applicant or 2) if the qualifying relative relocates overseas with the applicant. Demonstrating extreme hardship under both scenarios is not required if an applicant's evidence establishes that one of these scenarios would result from the denial of the waiver. The Applicant may meet this burden by submitting a statement from the qualifying relative certifying under penalty of perjury that the qualifying relative would relocate with the Applicant, or would remain in the United States, if the Applicant is denied admission. 9 *USCIS Policy Manual*, *supra*, at B.4(B). In the present case, the record contains a statement from the spouse stating that he cannot relocate to Vietnam with the Applicant because he shares custody of his son with his former spouse in the United States. The Applicant must therefore establish that if she is denied admission, her spouse would experience extreme hardship due to their separation.

¹ Because the Applicant resides overseas and is applying for an immigrant visa, the Department of State makes the final determination regarding her inadmissibility with respect to the visa.

On appeal, the Applicant contends that her spouse is experiencing mental hardship in his daily life due to their continued separation. She asserts that he meets with specialists regarding his mental health and would suffer extreme hardship if she is unable to reunite with him in the United States. In the psychological report accompanying the appeal, the spouse is described as receiving therapy for anxiety and panic. He has reported poor sleep, intrusive worry, and inability to relax since his divorce from his former spouse in 2017, but that these symptoms have increased since the denial of the Applicant's visa. The report describes these symptoms as occurring "more days than not." The report also lists notes from therapy sessions approximately every two weeks between May 2024 and August 2024, which indicate that the spouse was provided relaxation and mindfulness exercises and recommendations for additional therapy and medication. The session notes additionally state that the spouse agreed to work on certain goals but has had difficulty accepting the situation of being separated from the Applicant due to immigration issues.

Upon de novo review of the record, the Applicant has not established the requisite extreme hardship to her spouse, the only qualifying relative, if she is denied admission. We recognize the documented ongoing mental health concerns for the spouse and how they have increased with the uncertainty regarding the Applicant's waiver application. Nevertheless, the Applicant has not established how her presence would alleviate these conditions such that the spouse would experience extreme hardship if the waiver is denied. The evidence regarding the spouse's anxiety and sleep disorder indicates that he has had these conditions prior to his marriage to the Applicant and that he has sought and could continue to seek treatment for them. The record does not demonstrate that these conditions impact his ability to manage his daily life and meet his responsibilities, particularly because the record shows that the spouse has been living in the United States without the Applicant for the duration of their marriage. Although we acknowledge that the Applicant's spouse may experience some hardship if she is denied admission, she has not established that this hardship goes beyond what would be usual or expected due to the separation of spouses.

Therefore, the totality of the evidence in the record is insufficient to establish that the Applicant's spouse's hardships would go beyond the common results of inadmissibility and rise to the level of extreme hardship due to separation from the Applicant. As such, no purpose would be served in determining whether the Applicant merits a waiver as a matter of discretion.

III. CONCLUSION

Accordingly, the Applicant does not meet the requirements for a waiver under section 212(i)(1) of the Act, and the appeal must be dismissed.

ORDER: The appeal is dismissed.